

IN THE SENATE

SENATE JOINT MEMORIAL NO. 115

BY STATE AFFAIRS COMMITTEE

A JOINT MEMORIAL

TO THE PRESIDENT OF THE UNITED STATES, THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED, THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES, AND THE DIRECTOR OF THE UNITED STATES FISH AND WILDLIFE SERVICE.

We, your Memorialists, the Senate and the House of Representatives of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, Idaho has a plethora of ecosystems, such as Harriman State Park and Island Park, which lie within an 11,000-acre wildlife refuge in the greater Yellowstone Ecosystem, Camas National Wildlife Refuge southwest of Harriman, Deer Flat National Wildlife Refuge on Idaho's eastern border, and Kootenai National Wildlife Refuge in north Idaho, that provide vital habitat for a variety of species, of which migratory birds are particularly important; and

WHEREAS, the Migratory Bird Treaty Act of 1918 (MBTA) was implemented to prevent the extinction of birds due to unsustainable feather-trading and hunting practices and makes it illegal to "take," which includes harassing, pursuing, capturing, killing, selling, trading, buying, and transporting, among other activities, a protected migratory bird species, of which there are over 1,000, without prior authorization by the U.S. Fish and Wildlife Service (USFWS); and

WHEREAS, one such protected migratory bird species is the pelican, which is also classified as a predator species as they feast on fish; and

WHEREAS, a once-endangered species, the pelican has made a remarkable return and has established a stronghold in Idaho's abundant wetland refuge ecosystems such that its population is beginning to impact the overall use and health of the ecosystem; and

WHEREAS, Idaho's streams and rivers are renowned by fishermen across the nation, particularly the Henry's Fork River that meanders for eight miles through Harriman State Park, attracting fly-fishers from all four corners of the state and nation thereby generating revenues for the local community and business owners; and

WHEREAS, predatory birds, such as pelicans, have been documented to harvest more fish in Idaho than fisherman; and

WHEREAS, pelicans have been documented to consume over three pounds of fish per day; and

WHEREAS, over 30% of the electronic fish tags that originated in Idaho's renowned Silver Creek were documented by the Idaho Department of Fish and Game (IDFG) in pelican feces at the Minidoka National Wildlife Refuge pelican rookeries; and

WHEREAS, millions of sportsmen's dollars are spent by IDFG to create, promote, and enhance Idaho's fishing opportunities; and

1 WHEREAS, the pelican, a protected migratory bird under the MBTA, is ac-
2 tively managed and bred by the USFWS and cannot be taken, harassed, killed,
3 or otherwise disturbed without prior authorization by the USFWS; and

4 WHEREAS, the rigorous protections of the MBTA and other environmental
5 acts have successfully ensured this predatory bird's survival but are now
6 hindering the survival of other species and conflicting with areas' tradi-
7 tional use due to the birds' overpopulation.

8 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular
9 Session of the Sixty-eighth Idaho Legislature, the Senate and the House of
10 Representatives concurring therein, that the Legislature supports and urges
11 the U.S. Fish and Wildlife Service to curtail, or allow curtailment of, the
12 number of pelicans within Idaho.

13 BE IT FURTHER RESOLVED that the Legislature supports and urges the fed-
14 eral government to compensate the State of Idaho for loss of its resources
15 due to the pelican's overpopulation.

16 BE IT FURTHER RESOLVED that the Secretary of the Senate be, and she is
17 hereby authorized and directed to forward a copy of this Memorial to the
18 President of the United States, the President of the Senate and the Speaker
19 of the House of Representatives of Congress, the congressional delegation
20 representing the State of Idaho in the Congress of the United States, and the
21 Director of the United States Fish and Wildlife Service.